

# STATE OF NEW YORK

8838 --A

## IN SENATE

January 8, 2026

Introduced by Sens. RIVERA, ASHBY, BAILEY, BORRELLO, BROUK, CLEARE, COMRIE, FAHY, FERNANDEZ, GALLIVAN, GOUNARDES, HARCKHAM, HELMING, HINCHEY, JACKSON, LIU, MARTINS, MATTERA, MAY, MAYER, MYRIE, OBERACKER, O'MARA, PALUMBO, PERSAUD, RAMOS, RHOADS, C. RYAN, SALAZAR, SCARCELLA-SPANTON, SKOUFIS, WEBER, WEIK -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the social services law, in relation to providing parity to durable medical equipment providers by requiring Medicaid managed care organizations to reimburse such providers at no less than one hundred percent of the medical assistance durable medical equipment fee schedule for the same service or item

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 4 of section 364-j of the social services law  
2 is amended by adding a new paragraph (x) to read as follows:

3 (x) Managed care providers shall pay, directly or indirectly, for  
4 durable medical equipment, prosthetics, orthotics, and related supplies  
5 at no less than one hundred percent of the medical assistance durable  
6 medical equipment fee schedule for the same service or item.

7 § 2. This act shall take effect on the ninetieth day after it shall  
8 have become a law; provided, however, that the amendments to subdivision  
9 4 of section 364-j of the social services law made by section one of  
10 this act shall not affect the repeal of such section and shall be deemed  
11 repealed therewith.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

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